

Judicial Review on Health Emergency Law : The Challenge to Judicial Independence of Indonesian Constitutional Court

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Abstract

Judicial independence is crucial for the effective functioning of the Constitutional Court and its ability to deliver impartial and fair judgments. The Indonesian Constitutional Court is entrusted with the responsibility of reviewing the constitutionality of laws, including those enacted during times of emergencies. While emergency laws are often enacted with the intention of addressing urgent situations and safeguarding public welfare, they can also pose risks to fundamental rights and the rule of law if not subjected to proper scrutiny. The independence of the Court in reviewing these laws becomes paramount to ensure that constitutional principles are upheld and potential abuses of power are prevented. Government Regulations in Lieu are temporary regulations issued by the executive branch in urgent situations, effectively bypassing the legislative process. The Indonesian Constitutional Court is tasked with reviewing the constitutionality of these regulations to prevent potential encroachments on legislative authority and constitutional rights. In terms of Covid-19 pandemic, the Constitutional Court was reviewing the Government Regulation in Lieu (Peraturan Pemerintah Pengganti Undang-Undang/ PERPPU) No. 1 on 2020 based on the Court Decision 37/PUU-XVIII/2020. The result of the research shows that the presence of PERPPU actually becomes a double challenge for judges who decide, especially judges who are appointed by the President. In dealing with the Covid-19 Pandemic, The Constitutional Court has the competence to examine the emergency law and has the role in conducting Check and Balance in regard with the case of such emergency situation. Further, the Constitutional Court must hold the independence of the judiciary based on it's impartiality in Court Proceedings.

Keywords: Constitutional Court; Emergency Law; Independence; Judicial Review.

A. INTRODUCTION

This article is addressed to analyse the tendency of judicial independence of the Constitutional Court of RI in conducting review over the Emergency Law (Peraturan Pemerintah Pengganti Undang-Undang/ PERPPU) in Indonesia. The competence of the Constitutional Court in reviewing over the Emergency Law (Peraturan Pemerintah Pengganti Undang-Undang/PERPPU) is based on the Court Decision Number 138/PUU-VII/2009. According to this decision, the court has decided to have the competence to review the Emergency Law. In Indonesia, the Emergency Law has a Constitutional Basis according to Article 12 of RI Constitution regarding the power of the President in declaring State of Emergency. Article 22 of Indonesian Constitution stipulates that in time of Emergency, the President has the right to make emergency law which the constitution states as the government regulation in lieu of laws. Such emergency law has a limited period, which according to Section 2 of the article, the emergency law must obtain the approval from the DPR during the next session. However, if it is not approved, the law has to be revoked. In

Indonesia, there are several cases where the President makes emergency law. Ever since the establishment of the Constitutional Court of Indonesia, there are at least 8 Emergency Laws (PERPPU) that have been submitted to the Constitutional Court.

To this extent, the issue that has been addressed in this article is to assess the judicial independence of the constitutional court while reviewing this emergency law. Since the emergency law under the executive area, which the president has the power to make emergency law. There are specific circumstances which can make it justified to create emergency law, one of which is exigencies compel that stated by the Indonesia Constitution. At this point who can decide the exigencies compel. The answer is obviously the president, since it is the president who takes care of the state administration. So, it is logical that the president knew whenever the state entering the situation of exigencies compel. Several scholars affirm that it was presidential subjectivity to decide.¹

According to the court decision, there are three objectivity indicators for the exigencies compel that may have the consequence that the president is able to make the emergency law. First, there is an urgent need to find the legal solution. Second, there is a legal vacuum. And last, there is no legal procedure and the situation needs legal certainty. This article focuses on the independence of the constitutional court during the emergency situation of COVID-19 which in Indonesia is known as a health emergency situation. During the health emergency, Indonesia has two Emergency Law (PERPPU), there are PERPPU No. 1/2020 on State Finance Policy and the Stability of Financial System for the Pandemic Measures of CoronaVirus Diseases 2019 (COVID-19) and PERPPU No. 2/2020 on The Third Amendment of Law No. 1/2015 on Stipulation of PERPPU No. 1/2014 on the Governor, Regent, and City Mayor Election. Furthermore, this article is comparing Indonesia, the US and the Philippines. The main issue in this article is concerning judicial independence when reviewing the emergency law in particular the health emergency situation. It will look at how the constitutional judges decide the emergency law which is one of the legal products of the executive.²

B. RESEARCH METHOD

¹ Jimly Ashididqie, *Hukum Tata Negara Darurat* (Jakarta: Rajawali Pers, 2008), 48.

² ODIHR, *Fair Trial Rights and Public Health Emergencies* (Warsaw: OSCE Office for Democratic Institutions and Human Rights (ODIHR), 2021), 6.

The method used in this study is a normative legal research method which functions to find the truth of coherence related to the suitability of the rule of law with legal norms, conformity of legal norms with legal principles, and suitability of actions in accordance with legal norms or principles.³ The result of legal research shall be argumentation, theory, new concept as a solving method for current issue. In this study, the types of legal research that will be used are doctrinal research, theoretical research, and reform-oriented research.⁴ Doctrinal research is conducted to provide a systematic explanation of the rules governing certain legal categories and to analyze the relationship between legal rules.⁵ Theoretical research is carried out to promote a more complete understanding of the conceptual foundations of legal principles.⁶ Reform-oriented research is conducted to evaluate the adequacy of existing regulations by recommending changes to regulations that are deemed lacking. Research approach that will be used in this research is statute, conceptual, case, and comparative approach.

C. RESEARCH RESULTS AND DISCUSSION

1. Health Emergency Law in Indonesia

Indonesia has laws that address public health emergencies and crises, and these laws are intended to provide the necessary legal frameworks and responses. Act No. 6 of 2018 on Health Quarantine is the primary piece of legislation in Indonesia that governs health emergencies. The Indonesian government is empowered by this law to declare a health emergency and to take the necessary steps to stop and slow the spread of contagious illnesses. The President of Indonesia has the power to declare a health emergency when there is a serious threat to public health, on the suggestion of the Minister of Health. A legal foundation for enacting emergency measures is provided by the proclamation. According to the law, the government is authorized to set up facilities for quarantining and isolating people who have been found to be contaminated with contagious diseases. It also establishes guidelines and regulations for isolation and quarantine.

Further, to stop the introduction or spread of contagious diseases, the government may undertake health checks at ports of entry or impose limitations on travel. This includes

³ Peter Mahmud Marzuki, *Penelitian Hukum* (Jakarta: Kencana, 2021), 47.

⁴ Terry Hutchinson, *Researching and Writing in Law*, Fourth Edi (New South Wales: Thomson Reuters, 2018), 7.

⁵ Hutchinson, 8.

⁶ Hutchinson, 8.

obligatory quarantine for incoming tourists and screening procedures. Authorities in charge of health have the authority to monitor and report cases of infectious diseases as well as perform disease surveillance. Additionally, it requires both individuals and healthcare professionals to report cases that are suspected or proven. To stop the introduction or spread of contagious diseases, the government may undertake health checks at ports of entry or impose limitations on travel. This includes obligatory quarantine for incoming tourists and screening procedures. Authorities in charge of health have the authority to monitor and report cases of infectious diseases as well as perform disease surveillance. Additionally, it requires both individuals and healthcare professionals to report cases that are suspected or proven.

The Indonesian 1945 Constitution provides primary legal sources regarding the state of emergency on Article 12. This Article has the objective to declare the country under a state of emergency if there is a threat to the state, such as a harm to the safety of the people and the territorial integrity.⁷ It also provides for the declaration of a state of emergency if there is a threat to the state, such as a harm to the people's safety or the country's territorial integrity. This article gives the President the power to declare a state of emergency in his capacity as the head of state. The 1945 Indonesian Constitution that served as the constitutional basis for this article has not yet undergone any alterations or changes.⁸

The president has the power and the right to proclaim a perilous situation, just like in times of war or peace. This leads to a situation when an emergency situation arises, unlawful actions are permitted to be done by the President due to a compelling need. However, it shall be noted the actions or decisions must be on the basis of reasonable necessity.⁹

Indonesia previously prevailed Act No. 74 of 1957 about the Establishment of a State of Emergency, which is no longer applicable based on the Government Regulation In Lieu of Law No. 23 of 1959 regarding the Revocation of Law No. 74 of 1957 and Dangerous Conditions. According to Article 1 paragraph (1) of the Regulation, there are three criteria to be considered as a state of danger, such as: natural disasters; war or rebellion acts; and certain events which could endanger the sovereignty and territory of Indonesia. The

⁷ Bagir Manan and Susi Dwi Harijanti, 'Government Regulations in Lieu of Laws in the Perspective of Constitutional Teachings and Principles of the Rule of Law', *Padjadjaran Jurnal Ilmu Hukum* 4, no. 2 (2017): 223.

⁸ Mahkamah Konstitusi Republik Indonesia, *Naskah Komprehensif Perubahan Undang Undang Dasar Negara Republik Indonesia 1945* (Jakarta: Sekretariat Jenderal dan Kepaniteraan Mahkamah Konstitusi, 2010), 363.

⁹ Ashidiqqie, *Hukum Tata Negara Darurat*.

emergency declaration may only be issued by the President, as mentioned in Article 2 paragraph (2) of the Act is also in line with the constitutional provision on Article 12.

Article 12 and PERPPU No. 23 of 1959 also do not address who can oversee the legality of the platform used during a state of emergency. No institution or party can oversee the medium employed during a time of emergency. The institution with the competence to oversee such things must be in a branch of power other than the Executive.¹⁰ Moreover, in a democratic country, when the President wants to proclaim a state of emergency because of a risk that threatens the country, it is necessary to gain the permission of the people. This is critical since the state of emergency will drastically restrict the freedom of the people. As a result, the legislative body should be the best institution to limit the proclamation of a state of emergency and undertake emergency management.

Article 22 of 1945 Indonesian Constitution is the constitutional basis regarding the power of the president to issue the Government Regulation in Lieu of Laws, or known as PERPPU (Peraturan Pemerintah Pengganti Undang-Undang). PERPPU is a form of statutory regulations issued by the president because of the exigencies compel. However, it must obtain the approval of Dewan Perwakilan Rakyat (the House of Representatives). It is not always synonymous with the circumstances lying under the Article 12 of the Indonesian 1945 Constitution.

This idea is emphasized with the Constitutional Court Decision Number 003/PUU-III/2005, which defines the phrase of Kegentingan Yang Memaksa (Exigency Compel) under the Article 22 paragraph (1) of the Indonesian 1945 Constitution, as not always being related to a threat. When the Government in Lieu of laws is accepted by the House of Representatives and becomes a law, it shows that the phrase also serves as the foundation for the president's subjective judgment of what will eventually become an objective situation. Therefore, according to Jimly Asshiddiqie, there are two types of Government Regulation in Lieu of Laws, namely PERPPU which is proclaimed because of an emergency situation but in a normal condition and it is constituted when the state had already declared the situation to be an emergency.

¹⁰ Muhammad Yoppy Adhihernawan and Hernadi Affandi, 'Limitation of The President's Power to Declare a State of Emergency: A Comparison of France, India, and Indonesia', *Jurnal Penelitian Hukum De Jure* 22, no. 2 (2022): 146.

Moreover, there are three main fundamental elements in the state administration practice to the application of Article 22, such as: danger-related things, necessity, and time period.¹¹ These three elements are logical requirements for categorizing a situation as exigency compel, so as the government can take legal actions to anticipate the emergency condition. This is in line with the idea of Bagir Manan, who said that the president may only issue a PERPPU if it meets certain requirements, it is issued in cases of compelling urgency; it does not regulate things that are regulated in the Constitution; it does not stipulate the existence and duties of the authority of state institutions; and there may not be a PERPPU that can suspend and abolish the authority of state institutions.¹² Therefore, the use of legal instruments in the form PERPPU is largely determined by the conditions and needs that require urgent regulations where the legal rules do not yet exist or the law is no longer able to accommodate the interests of administering the government.

The House of Representatives must continue to exercise its monitoring role as a state based on law with the passage of the PERPPU. With the enactment of it, the House of Representatives must continue to carry out its oversight function as a state based on law. Arrangements regarding Laws and PERPPU can be seen in Article 5, Article 20, and Article 22 of Indonesian 1945 Constitution.¹³ The House of Representatives as the legislative power holder has the authority to form Acts together with the President. It is different from PERPPU, which the President made unilaterally and without need for consultation with the House of Representatives. The Government Regulation in Lieu of Laws is only valid for a limited period of time, though, as the President must submit it to the House of Representatives before it gets the approval to become a law.

Because PERPPU and Law have an equal position based on Act No.12 of 2011 regarding the Formation of Legislation, the DPR must actively oversee both the enactment and implementation of PERPPU. PERPPU must not be excessive. Then, even though PERPPU has the same position as the Act, the Constitutional Court does not have the authority to

¹¹ Djoko Imbawani, 'Pengujian Peraturan Pemerintah Pengganti Undang-Undang Oleh Mahkamah Konstitusi', *Jurnal Media Hukum* 21, no. 1 (2014): 85.

¹² Nur Rohim, 'Kontroversi Pembentukan Perppu No. 1 Tahun 2013 Tentang Mahkamah Konstitusi Dalam Ranah Kegentingan Yang Memaksa', *Jurnal Cita Hukum* 1, no. 1 (2013): 123.

¹³ Riri Nazriyah, 'Kewenangan Mahkamah Konstitusi Dalam Menguji Peraturan Pemerintah Pengganti Undang-Undang', *Jurnal Hukum* 17, no. 3 (2010): 387.

examine it.¹⁴ In Article 22 paragraph (3) of the Indonesian 1945 Constitution, it is stated that if the PERPPU does not get approval from the House of Representatives, then it must be repealed. It means that even though it is not approved by the DPR, constitutionally the Government Regulation in Lieu of Laws must be revoked by the President and it still remains in effect until it is revoked by him. Further, in Article 52 of Law Number 12 of 2011, it is stated that if the DPR does not approve the PERPPU, then it must be revoked and the President or DPR submitting a Bill on the revocation of the PERPPU. If the PERPPU contradicts the previously existing law, then the PERPPU will apply, because the PERPPU and the law have the equal status based on statutory regulations of Indonesia, and the PERPPU was issued more recently. In this case, the principle of *lex posteriori derogat legi priori* applied.

Based on the articles mentioned above, it can be seen that there are two categories of extraordinary circumstances from the state of emergency. First is a state of danger and another one, should exigencies compel. However, the use of Article 12 and 22 of the Indonesian 1945 Constitution is slightly different. Article 12 focuses more on the authority of the President as the head of state to protect the state from interference from outside the state, while the use of Article 22 is used more for regulatory purposes, specifically in relation to the power of the President to stipulate PERPPU. As a result, it places a greater emphasis on the state's internal issues in the form of urgent legal needs. Standing on this idea, when the provisions of the Indonesian 1945 Constitution are examined, there are three crucial elements that cumulatively form the idea of a state of emergency. These elements are dangerous threats, a reasonable necessity, and a limited amount of time.

In response to the global pandemic of Coronavirus Disease (Covid-19), the Indonesian government declared a state of emergency in the form of a legislation or government regulation in place of a law, two options might be carried out in accordance with the 1945 Indonesian Constitution. Presidential Decree No. 11 of 2020, however, is not one of them. In other words, rather than a state of emergency, the government has declared Covid-19 as a public health emergency. Emergency measures are implemented even though a state of emergency has not been declared officially by the government. Therefore, if an unusual act is performed even though there is no legal basis for it, it is seen as a violation of the law.

¹⁴ Jimly Ashidiqqie, *Perihal Undang-Undang* (Jakarta: Konstitusi Press, 2020), 9.

Then, the government has also announced a preventive strategy to stop the spread of the virus, called Pembatasan Sosial Berskala Besar, or PSBB, which stands for Large-Scale Social Restrictions through the issuance of the Government Regulation No. 21 of 2020 on Large-Scale Social Restrictions. Health quarantine officials may impose home quarantines, regional quarantines, hospital quarantines, or significant social restrictions in the event of a public health emergency, as what stipulated under Article 49 of Law No. 6 of 2018 on Health Quarantine.

Instead of enforcing regional quarantine, the government opts to impose extensive social restrictions in cities and regions. Large-scale social limitations have a lower rank than regional quarantine since regional quarantine is listed in Law No. 6 of 2018 on Health Quarantine before large-scale social restrictions. In order to keep people from accessing or leaving a particular area for certain emergency purposes, a regional quarantine is applied. A nation that suffers an emergency, such as a war or an outbreak of dangerous diseases, establishes a regional quarantine strategy. According to Article 154 of Law No. 36 of 2009 on Health, the government is required to inform the general public about the locations where disease transmission occurs. As a result, the government is required to rapidly disclose the types and distribution of potentially contagious diseases as well as the regions that serve as the sources of transmission. Then, Government Regulation in Lieu of Law No. 1 of 2020 on State Financial Policy and Stability of Financial Systems for the Management of CoronaVirus Disease 2019 (Covid-19) and/or Encounter the Threat to National Economy and/or Stability of Financial Systems was enacted as the financial and monetary instruments. Following unease regarding the Government Regulation in Lieu of Law No. 1 of 2020, a judicial review request was made to the Constitutional Court. Article 27 of PERPPU No. 1 of 2020 confirms a number of provisions, which is why the judicial review action has been taken. First, it is about state loss provisions. Second, neither a criminal nor a civil case may be brought against the Financial System Stability Committee. Third, the State Administrative Court cannot consider actions or conclusions based on the Government Regulation in Lieu of Law No. 1 of 2020. In the end, the Constitutional Court issued Decision No. 37/PUUXVIII/2020 on September 28, 2020, which fulfilled the request for judicial review of Law No. 2 of 2020.

The Constitutional Court (MK) in Decision Number 37/PUU-XVIII/2020 in its legal considerations, decided that the law on Covid-19 was only valid as long as the status of the

Covid-19 pandemic had not been declared over by the President and no later than the end of the second year since it is being promulgated. In the legal considerations, the Court also considered that conceptually, the state of emergency and the law in time of crisis must be a unified whole that cannot be separated as an effort to emphasize to the public regarding an emergency. Thus, providing fair legal certainty as guaranteed in Article 28D paragraph (1) of the 1945 Constitution. According to Article 29 of the Appendix of the Constitutional Court Decision, Act No. 2 of 2020 must be declared contrary to the 1945 Constitution and has no binding legal force as long as it is not interpreted as a Government Regulation in Lieu of Law which reads that the status of the Covid-19 pandemic has ended in Indonesia and this status must be declared no later than the end of the second year during the pandemic.

1.1. Judicial Independence of the Constitutional Court on Reviewing Emergency Law

The Constitutional Court of Indonesia is an independent judicial institution established under the 1945 Constitution of Indonesia. The main responsibility is for interpreting the constitution, adjudicating constitutional disputes, and safeguarding the constitutional rights and principles of the Indonesian people. The main role of the Constitutional Court is to review the constitutionality of laws and regulations in Indonesia. It ensures that these laws and regulations do not contradict the provisions and principles enshrined in the constitution. The Court has the authority to review laws both before they are enacted and after they have been enacted.

The Constitutional Court also has the ability to resolve disputes between the several departments of government as well as problems involving the legitimacy of state institutions. By ensuring that their actions are in accordance with the constitution, it serves as a check on the legislative and executive bodies. The Constitutional Court also has the power to decide election results and resolve disagreements involving the dissolution of political parties. It is essential for preserving democratic procedures and ensuring that they are carried out in accordance with the constitution. The rulings of the Constitutional Court are conclusive and legally binding. Setting precedents for upcoming cases and influencing how constitutional principles are interpreted, they have a profound impact on Indonesia's legal and political landscape. Overall, the Indonesian Constitutional Court upholds the rule

of law, safeguards the rights and liberties of the people of Indonesia and keeps the institutions in check.

The independence of the Constitutional Court (Mahkamah Konstitusi) is very important in carrying out its duties as an independent judicial institution. The independence of the Constitutional Court refers to the ability of the Court to act freely and unaffected by pressure or intervention from any party, including the government, legislature, or political interests. In Indonesia, judicial independence is guaranteed by Article 24 Section (1) of the Indonesian Constitution. Furthermore, the Law on the Judicial Power emphasizes that the judicial branches.

The role of the Constitutional Court in Indonesia during an emergency situation remains crucial in upholding constitutional principles and protecting the rights of the Indonesian people. While the specific circumstances of an emergency may require adaptations in the functioning of institutions, including the Constitutional Court, its fundamental role and responsibilities remain intact. Here are some key aspects of the Constitutional Court's role during emergencies. First is Reviewing Emergency Measures. The Constitutional Court has the authority to review emergency measures and determine their compatibility with the constitution. It ensures that the measures implemented during an emergency do not violate the fundamental rights and principles enshrined in the constitution. Second, Safeguarding Constitutional Rights. The Court plays a crucial role in safeguarding the constitutional rights of individuals, even during emergencies. It can hear cases related to violations of constitutional rights and ensure that any restrictions imposed during the emergency are necessary, proportional, and in line with constitutional provisions.

Subsequently, Balancing Power and Checks. The Constitutional Court acts as a check on the executive branch, particularly during emergencies when the government's powers may expand. It ensures that emergency powers are exercised within the boundaries of the constitution and prevents any abuse or overreach of authority. Next, Constitutional Interpretation. The Court continues to interpret the constitution and provide guidance on constitutional matters, even during emergencies. It ensures that the principles and values enshrined in the constitution remain upheld and protected, providing stability and legal certainty in times of crisis.

Fifth, the Constitutional Court upholds the rule of law, even during emergencies. It ensures that emergency measures and actions taken by the government are lawful and adhere to constitutional principles. This helps maintain the legitimacy of government actions and prevents arbitrary or unlawful actions that may occur during emergencies. Last one, the independence and impartiality of the Constitutional Court are crucial during emergencies. The Court should be free from any external influence or pressure, including from the government or political interests, to ensure that its decisions are based solely on legal and constitutional considerations. While the specific implementation of the role of Constitutional Court may be influenced by the circumstances of an emergency, its overarching function as a guardian of the constitution and protector of constitutional rights remains essential. The Court's decisions and actions contribute to upholding the rule of law and ensuring that emergency measures are carried out in a manner consistent with the constitution and the principles of democracy.

1.2. The Constitutional Court on Reviewing Health Emergency Law in Comparative Perspective

The main responsibility of the Constitutional Court when examining emergency laws during a pandemic is to judge the constitutionality measures. Depending on the constitutional structure and legal system of the country, the Constitutional Court may apply different special considerations and principles. The Constitutional Court assesses how closely the emergency laws adhere to the clauses and principles of the constitution. It evaluates whether the laws uphold the fundamental freedoms and rights enshrined in the constitution and whether any restrictions on those rights are justified in light of the pandemic.

The Constitutional Court evaluates whether the emergency laws are reasonable in relation to the goals they pursue. It determines whether the restrictions are essential, logical, and do not unreasonably violate fundamental rights. The impact on individual rights, the effectiveness of the measures, and the severity of the pandemic are among the things the court may take into account. The Constitutional Court examines whether the emergency laws uphold the balance between the three branches of government and the division of powers. It makes sure that the executive branch does not hold an excessive amount of

emergency power and that the right checks and balances are in place to prevent power abuse.

The duration of emergency laws and the existence of mechanisms for routine assessment and renewal are both examined by the Constitutional Court. It evaluates whether there are enough protections to stop the protracted or arbitrary use of emergency powers. The Constitutional Court examines whether the emergency laws are impartial and do not discriminate against any individuals or organizations. It evaluates whether any disparate treatment is founded on fair and impartial standards rather than arbitrary or discriminatory criteria. The Constitutional Court considers the duration of emergency laws as well as the presence of mechanisms for frequent evaluation and renewal. It assesses whether there are sufficient safeguards to prevent the prolonged or capricious use of emergency powers. The Constitutional Court looks into whether or not the emergency laws are fair and do not target any particular people or groups. It determines whether any disparate treatment is justified by impartial and fair standards as opposed to arbitrary or discriminatory norms.

The Constitutional Court looks at whether the legislative and legal processes used to implement the emergency laws were appropriate. It makes sure that the laws were passed in line with the requirements of the constitution, including legislative deliberation and public engagement. Even in the midst of a pandemic, the review of the Constitutional Court seeks to preserve the constitution and safeguard the rights and liberties of the peoples. The Constitutional Court assists in ensuring that the government's reaction to the epidemic respects the rule of law and maintains within the parameters of the constitution by carefully examining the emergency laws.

There is no separate Constitutional Court in the United States. The Supreme Court, which has the authority to conduct judicial reviews and serves as the highest court of the nation, is the final arbiter in constitutional disputes.¹⁵ Even though it is not referred to as a "Constitutional Court," the Supreme Court performs similar duties in interpreting and applying the U.S. Constitution. The U.S. main duty of the Supreme Court is to interpret the Constitution and make sure that laws and government acts adhere to its requirements. It has

¹⁵ L. Amanda Tyler, 'Judicial Review in Times of Emergency: From the Founding Through The Covid-19 Pandemic', *Virginal Law Review* 109, no. 3 (2023): 496.

the authority to examine whether laws, executive orders, and other acts of the government at the federal and state levels are constitutional. By making rulings, the Court creates legally binding precedents that influence how the Constitution is interpreted and direct subsequent legal disputes.

The highest judicial body in the U.S. is the Supreme Court, which serves as the final arbiter on constitutional matters and has the power of judicial review. While it is not specifically called a "Constitutional Court," the Supreme Court fulfils similar functions in interpreting and applying the U.S. Constitution. The primary role of the U.S. Supreme Court is to interpret the Constitution and ensure that laws and government actions comply with its provisions. It has the power to review the constitutionality of federal and state laws, executive orders, and other government actions. Through its decisions, the Court establishes binding legal precedents that shape the interpretation of the Constitution and guide future legal cases.

In particular, the Supreme Court serves as a check on the other three bodies through its judicial review authority. By ensuring that the government does not violate constitutional protections, it safeguards individual liberties and rights. The decisions of the court frequently have a substantial impact on the protection of civil rights, civil liberties, and the division of power between the federal government and the states. The President names nine justices to the Court for life with the advice of the senates and consent. The justices deliberate, formulate written opinions, and render judgments on the constitutionality of legislation and presidential orders.

The U.S. Supreme Court, as the highest judicial body in the country, plays a crucial role in interpreting the Constitution and upholding constitutional principles, including during times of emergency. Here are some key aspects to consider. First is Judicial Review. The U.S. Supreme Court has the power of judicial review, which allows it to review the constitutionality of laws, executive actions, and government measures. This power remains in effect during emergencies, enabling the Court to assess whether emergency actions are consistent with constitutional provisions. Next, Safeguarding Constitutional Rights. The Supreme Court has the responsibility to protect individual rights, even during emergencies. It can hear cases related to violations of constitutional rights and ensure that emergency

measures do not unreasonably infringe upon fundamental liberties guaranteed by the Constitution.

Further, Balancing National Security and Civil Liberties. During emergencies, there may be a tension between protecting national security and preserving civil liberties. The Supreme Court plays a role in striking a balance between these interests, ensuring that emergency measures are necessary, narrowly tailored, and do not unduly encroach upon individual rights. Next, Constitutional Interpretation. The Court continues to interpret the U.S. Constitution during emergencies. Its decisions provide guidance on constitutional matters, shape the legal landscape, and establish precedents that can influence future emergency-related cases and government actions. Then Checks and Balances. The Supreme Court acts as a check on the other branches of government, including the executive branch, during emergencies. It ensures that emergency powers are exercised within the limits of the Constitution and prevents potential abuses or overreach of authority. Lastly, Independence and Impartiality. The independence and impartiality of the Supreme Court are essential during emergencies. Justices are expected to render decisions based on legal analysis and constitutional principles, without being unduly influenced by political considerations or external pressures.

During the COVID-19 pandemic, the Supreme Court of the United States has been crucial, notably in resolving legal challenges and constitutional concerns that have come up as a result of the crisis. The first is balancing constitutional rights with public health. The pandemic has highlighted a conflict between upholding individual rights and defending public health. Cases involving restrictions on particular activities, such as prohibitions on religious gatherings, commercial activity, or freedom of movement, have been brought before the Supreme Court. The Court has considered whether these actions violate constitutional rights and whether public health considerations support them. Reviewing the Executive Authority will come next.

The Supreme Court of the United States has played a significant role during the COVID-19 pandemic, particularly in addressing legal issues and constitutional questions that have arisen as a result of the crisis. First is Balancing Public Health and Constitutional Rights. The pandemic has presented a tension between protecting public health and preserving individual rights. The Supreme Court has been called upon to consider cases that involve

the restriction of certain activities, such as limitations on religious gatherings, business operations, or freedom of movement. The Court has examined whether these measures infringe upon constitutional rights and whether they are justified by public health concerns. Next, Reviewing the Executive Authority.

Judicial review of state and federal executive responses to the pandemic has taken place, and the Supreme Court has been involved in determining the boundaries of executive power. The Court, for instance, has looked into challenges to executive orders or emergency restrictions issued by government authorities, determining whether they go beyond their constitutional authority or violate personal freedoms. Judicial review of state and federal executive responses to the pandemic has taken place, and the Supreme Court has been involved in determining the boundaries of executive power. The Court, for instance, has looked into challenges to executive orders or emergency restrictions issued by government authorities, determining whether they go beyond their constitutional authority or violate personal freedoms.

Election procedures have been disrupted by the pandemic, giving rise to legal disputes over voting rights and election protocols. The Supreme Court has heard arguments in challenges involving early voting, mail-in ballots, absentee voting, and other concerns that could influence how elections are conducted during the pandemic. The right to vote, due process, and equal protection are frequently at issue in these situations. Moreover, the pandemic has hampered court procedures, resulting in delays and difficulties in receiving justice. The Supreme Court has addressed matters pertaining to court procedures, including limitations on in-person proceedings, extensions of deadlines for legal actions, and remote hearings. It has attempted to strike a balance between the necessity to guarantee the administration of justice and issues of public health and constitutional rights.

The pandemic has prompted debate on how the federal government and the states should be divided among themselves. Cases involving disagreements between federal and state authorities over things like quarantine measures, commercial laws, and the enforcement of public health restrictions have been taken into consideration by the Supreme Court. It is crucial to remember that the particular decisions made by the Supreme Court during the COVID-19 epidemic may have varied based on the circumstances and justifications put forth in each case. In making rulings during the pandemic, the Court

sought to manage the difficulties of public health, individual rights, and governmental authority. The task of the court is to interpret the law and the Constitution.

In their separate legal systems, the Constitutional Courts of Indonesia and the United States have different organizational structures and functions. The Supreme Court of the United States is the highest appellate court with the authority of judicial review, in contrast to the Constitutional Court of Indonesia, which is a specialized court focused on constitutional issues. The COVID-19 pandemic-related legislation, rules, and government activities may all be subject to examination by Indonesia's Constitutional Court for constitutionality. It ensures that the government's actions follow constitutional guidelines. The Supreme Court of the United States has the authority to conduct judicial review, which enables it to judge whether or whether laws and executive actions relating to the pandemic are constitutional.

The Indonesian Constitutional Court has contributed to the evaluation of the pandemic-related emergency measures. It has evaluated the constitutionality of many rules and laws, including those pertaining to limits on public health, financial aid, and election procedures. The Supreme Court of the United States has heard cases involving COVID-19-related restrictions on religious meetings and voting rights issues. The job of defending individual rights during the pandemic has been given to both courts. The Indonesian Constitutional Court has heard instances involving constitutional rights infringement and has made sure that emergency measures do not unreasonably violate fundamental rights. Similarly, the Supreme Court of the United States has examined cases involving the balance between public health measures and individual rights, such as religious freedom and equal protection.

The Constitutional Court in Indonesia plays a significant role in safeguarding democratic processes and ensuring that elections are conducted in accordance with the constitution. It has adjudicated disputes related to election results and party dissolution during the pandemic. In the United States, the Supreme Court has addressed legal issues pertaining to the conduct of elections during the pandemic, including absentee voting and mail-in ballots. Even if their duties are similar, it is vital to remember that Indonesia and the United States have different legal systems, constitutions, and court procedures. Their various legal systems, constitutional clauses, and the particular issues that were presented

before them all had an impact on how the Constitutional Court in Indonesia and the Supreme Court of the United States responded to the COVID-19 outbreak.

The constitutional court for the Philippines is known as the Supreme Court. As the highest court in the nation, the Supreme Court of the Philippines is tasked with interpreting the constitution, determining the legality of government laws and other actions, and defending constitutional rights. To determine whether laws, executive orders, and other government actions are constitutional, the Supreme Court has the power to perform judicial review. It ensures that these laws and actions are in accordance with the 1987 Philippine Constitution. By interpreting Philippine Constitutional provisions, the Supreme Court of the Philippines explains the meaning and application of constitutional rights and values.

In the Philippines, the Supreme Court protects constitutional rights. It hears instances regarding constitutional rights violations and makes sure that government acts don't excessively violate these rights. The Court is essential to protecting the constitution's enshrined fundamental rights, such as equal protection, due process, and civil liberties. In the Philippines, the Supreme Court is the ultimate adjudicator of legal issues. It considers cases involving a range of concerns, such as administrative, criminal, and civil ones. It settles disagreements between the executive and legislative branches of government as well as those between the federal and municipal levels of government.

The Supreme Court has administrative duties in addition to its judicial duties. It regulates lower courts, establishes guidelines for the legal industry, and keeps an eye on the nation's system of legal education. Justices and judges for lesser courts may be appointed by the Supreme Court. It also examines President-made appointments to make sure they adhere to the requirements and criteria set forth in the Constitution. The Supreme Court of the Philippines is crucial to sustaining the rule of law, defending constitutional rights, and preserving the separation of powers among the three parts of government. Its judgements have a considerable impact on the legal system and the defence of individual rights.

When there is a crisis or a national emergency, the President of the Philippines may use emergency powers. The Philippine Constitution and other pertinent laws confer these emergency powers. When a threat to public safety or national security is imminent, such as during a natural catastrophe, armed conflict, pandemic, or other dangerous circumstance, the President may declare a state of emergency. The government can respond to the issue

successfully when a state of emergency is declared. The Constitution itself or laws passed by Congress provide the President authority to act in an emergency. Depending on the nature and extent of the emergency, various powers may be conferred. For instance, Congress can enact legislation giving the President extra power during an emergency.

In the Philippines, a range of responses are possible in an emergency. Curfews may be implemented, the use of military forces to enforce the law, the regulation of essential goods and services, the control of the transportation and communication infrastructure, and the allocation of funds and resources to deal with the emergency are all possibilities. Emergency powers have a limit even if they grant the government flexibility and power. The exercise of emergency powers must conform to applicable legal and constitutional standards and be reasonable and necessary. The Constitution guarantees certain rights, such as the right to life, liberty, and due process, which cannot be changed or ignored under any circumstances.

The Philippine Constitution requires that Congress, as a co-equal branch of government, exercises oversight over the President's exercise of emergency powers. Congress can review and determine the validity and continuation of the declaration of a state of emergency. Additionally, Congress may set limitations and conditions on the exercise of emergency powers through legislation. The Philippine Supreme Court has the power of judicial review and can examine the constitutionality of emergency measures or actions taken by the government during a state of emergency. The Court ensures that the exercise of emergency powers remains within constitutional boundaries and that individual rights are protected. It is important to note that the specific provisions and extent of emergency powers may differ based on the circumstances and the legal framework in place at the time of the emergency. The exercise of emergency powers is intended to address and mitigate crises effectively while upholding the rule of law and respecting constitutional rights.

The Court makes sure that the use of emergency powers respects individual rights and stays within constitutional bounds. It is significant to remember that the particular clauses and scope of emergency powers may vary depending on the situation and the applicable legislative framework at the time of the emergency. In order to effectively confront and ameliorate emergencies while protecting the rule of law and respecting constitutional rights, emergency powers must be used.

The Supreme Court of the Philippines preserves its power and responsibility to uphold constitutional principles in times of crisis, such as a public health emergency or natural disaster. While the precise reaction may change based on the situation. To make sure that laws, rules, and government acts, including emergency measures, are in compliance with the provisions of the Philippine Constitution, the Supreme Court uses its authority of judicial review. It can assess whether the government's emergency response plans were constitutionally sound. In times of crisis, the Supreme Court is essential to finding a balance between preserving fundamental rights and promoting the general welfare. It assesses whether emergency measures are essential and proportional to meet the emergency situation and whether they unreasonably violate any individual rights guaranteed by the constitution. Even in times of crisis, the Supreme Court makes sure that the law is followed. It examines cases to see if the right of the people to a fair trial, due process, and access to justice are upheld, and it can take action if these rights are infringed.

The Supreme Court offers a platform for people and organizations to seek just compensation for alleged constitutional infractions in times of crisis. It hears cases arguing against the constitutionality of emergency measures or requesting compensation for the violation of constitutional rights. The Supreme Court acts as a check on the other parts of the government, even in times of crisis. In order to guarantee that emergency measures do not go beyond what the Constitution permits and that the balance of powers is preserved, it can examine and restrict the use of presidential power.

Even while the Supreme Court's exact decisions and actions may change based on the situation and the issues that are brought to it in an emergency, its basic function in maintaining the constitution and defending individual rights remains crucial. In these trying times, the court's ruling helps to uphold the rule of law and the constitutional system. Even in times of emergency, judicial independence is of the utmost significance in the Philippines. While certain actions may be required in urgent situations to solve the crisis, maintaining the norms of judicial independence is crucial to ensuring the impartial and fair administration of justice.

Even in times of emergency, the court is essential to safeguarding fundamental freedoms. Judges must continue to protect individual rights and make sure that these rights are not unduly violated by emergency measures. The court, including the Supreme Court,

has the power to examine whether the government's emergency actions are constitutional. It makes sure that these actions are appropriate, necessary, and consistent with constitutional guidelines while upholding fundamental rights. Judges and justices must maintain their independence from outside forces, such as the executive and legislative departments, in order to maintain their judicial independence. They should be immune from political pressure or influence and make decisions based on the law, the evidence, and constitutional principles.

The values of justice and due process must be respected in all circumstances, even emergencies. The right to a fair and impartial hearing should be guaranteed to anyone facing legal action or limits put in place due to the emergency by judges and justices. The judiciary should be open to the public and responsible while maintaining its independence. In times of crisis, the judiciary benefits from open and honest communication regarding its actions, judgments, and procedures.

The judiciary should make every effort to continue performing its fundamental duties under emergency situations. This can entail implementing novel strategies like remote hearings or changing court procedures while making sure that due process rights are upheld. Collaboration between the executive branch, judiciary, and other stakeholders is crucial during emergencies. Any cooperation, however, must not jeopardize the judiciary's independence or impair its capacity to render unbiased judgments. Maintaining judicial independence is crucial for assuring the preservation of individual rights, defending the rule of law, and retaining public confidence in the justice system, even while emergencies may add new difficulties and demands. The judiciary should strive to strike a balance between the need for expediency in emergency response and the principles of fairness, impartiality, and constitutional adherence.

For the sake of sustaining the rule of law, safeguarding constitutional rights, and preserving public confidence in the judicial system, it is essential to ensure judicial independence in handling the pandemic. This is the comparison of judicial independence during the pandemic in the Constitutional Court of Indonesia, the US, and the Philippines. The Indonesian Constitutional Court is specifically tasked with examining the constitutionality of laws and rules, particularly those pertaining to the pandemic. In interpreting the constitution and defending constitutional rights throughout the pandemic,

the Constitutional Court works to maintain its independence, impartiality, and integrity. The Court has the authority to examine emergency measures to make sure they adhere to the constitution, uphold individual rights, and avoid going beyond what is necessary.

In interpreting the U.S. Constitution and upholding the validity of legislation and government acts during the pandemic, the Supreme Court of the United States is essential. In its judgements, the Supreme Court places a strong emphasis on judicial independence and impartiality, protecting individual rights and acting as a check on the other branches of government. The Court examines cases involving violations of constitutional rights during the pandemic to make sure that governmental actions do not excessively impinge on personal freedoms. As the highest court of appeals, the Supreme Court of the Philippines engages in judicial review to ensure that legislation and government measures taken during the pandemic are legitimate. In its rulings, the Supreme Court upholds judicial independence, impartiality, and integrity while defending constitutional rights and acting as a check on other government bodies. In order to ensure fair and just proceedings, the Court examines cases involving violations of due process and assaults on individual rights during the pandemic.

In order to combat the pandemic in all three nations, judicial independence is still essential. The corresponding Constitutional Courts work to interpret the constitution, examine emergency measures, protect individual rights, and preserve the separation of powers. They seek to make choices free from outside pressure or political influence and based on the law, the evidence, and constitutional principles. For any nation to maintain the rule of law and safeguard constitutional rights in the face of the pandemic, judicial independence must be upheld. The independence of the court may affect the quality of legal product or policy that has been produced by the executive and legislative branch. However, in case of emergency law, we cannot assess the quality of the law since it has been produced under special circumstances.¹⁶ Hence, we believe that by reviewing the emergency law, the independence of court is being tested. This is because even during emergency, the judges are responsible to ensure and maintain the rule of law.¹⁷ But there is some flexibility that can be exercised by the court during the emergency since the “emergency” is an extraordinary

¹⁶ Tom S. Clark, *The Limits of Judicial Independence* (Cambridge: Cambridge University Press, 2010), 256.

¹⁷ Victor V. Ramraj, *Emergencies and the Limits of Legality* (Cambridge: Cambridge University Press, 2008), 8.

event.¹⁸ By using this indicator, we later can see the independence of Mahkamah Konstitusi judge during reviewing the PERPPU that was produced when a health emergency was declared by the President.

In case of independence, several scholars separated it into two parts, institution (court) independence and individual (judges) independence.¹⁹ In order to achieve the court's independence, first we need to ensure that every judge working under such a court is independent. To measure whether a judge is independent, we can measure it using an objective and subjective perspective. Objective is whether the decision is inline and compliance within the legal basis and guideline, and subjective is whether the judge has been "trusted" by the society.²⁰ In the case of reviewing "the COVID PERPPU", Mahkamah Konstitusi has one case. The case of reviewing the PERPPU 1/2020. All of the results of the reviewing can be found at Court Decision No. 37/PUU-XVIII/2020. In this court decision, there are three dissenting opinions, one of which was from Justice Daniel Yusmic, appointed constitutional judges by the recommendation from the President. In his dissenting opinion, Justice Daniel stated that since the PERPPU was created under a health emergency situation, there is no legal basis that can underline the necessity to review such PERPPU. Such a statement should be assumed that is produced within the independence frame. Several scholars stated that independence of judges can be affected also from external factors outside the legal frame, such as social and psychological factors. Social aspect plays a huge role in judges' decision making. Social pressure can be one thing that influences the judges, even to the psychologist level.

This phenomenon later can be described as a legal culture. In this particular case, we can stated that the judges who are issued a dissenting opinion may or may not also been pressured by the society, But, nonetheless the dissenting opinion is produce as an independence decision by judge. This conclusion is gain also using the indicator that we mention before. Although objectively, Justice Daniel Yusmic has been appointed by president, that does not make his dissenting opinion a non-independence since he aligned

¹⁸ Martin H. Reddish, *Judicial Independence and The American Constitution* (Stanford: Stanford Law Book, 2017), 172.

¹⁹ Frank B. Cross, 'Thoughts on Goldilocks and Judicial Independence', *Ohio State Law Journal* 64, no. 1 (2003): 196.

²⁰ Frans Van Dijk and Geoffrey Vos, 'A Method for Assessment of the Independence and Accountability of the Judiciary', *International Journal for Court Administration* 9, no. 3 (19 December 2018): 19, <https://doi.org/10.18352/ijca.276>.

his opinion based on Indonesian Constitution and Positive Law. Subjectively, Justice Daniel Yusmic also did not lose the Indonesian society trust after the final court decision was made.

D. CONCLUSION

In emergency situations, the government may take extraordinary measures or impose greater restrictions on the rights of individuals and institutions, including the Constitutional Court. This could include the suspension of some aspects of the independence of judges or a temporary reduction in the powers and authority of the Constitutional Court. However, it is important to note that maintaining the independence of the Constitutional Court during a state of emergency is an important principle in maintaining the rule of law. This independence ensures that the institution can act without political pressure or external influences that could affect its legal decisions.

In many countries, constitutions also contain provisions that protect the independence of the Constitutional Court even in emergencies. This provision aims to ensure that the institution can carry out its oversight function objectively and fairly, regardless of political pressure or government interests. The Constitutional Court of the Republic of Indonesia has the competence to review the emergency law. One of the bases is to conduct the check and balance since the emergency law is a product of the executive branch. In time of pandemic covid-19, the President of the Republic of Indonesia issued two emergency laws on the basis of an urgent situation. The Emergency Law No. 1/2020 was subject to review before the Court. It was reviewed in the situation of a health emergency. The Court decided partially unconstitutional. In the decision, there were three judges who delivered their dissenting opinion. In conclusion, maintaining the independence of justice on the Indonesian

Constitutional Court in reviewing Government Regulations in Lieu during the pandemic is crucial for upholding constitutional rights while addressing the exigencies of public health emergencies. By ensuring judicial autonomy, promoting transparency, and fostering stakeholder engagement, the Court can strike a delicate balance between crisis response and constitutional safeguards, contributing to a resilient and rights-respecting democratic system in Indonesia.

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UNWITTING WRONGDOERS AND THE ROLE OF MORAL DISAGREEMENT IN
BLAME²¹

(in David Shoemaker [ed], *Oxford Studies in Agency and Responsibility, Volume I* [Oxford University Press, 2013], pp. 225–245)

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In “Culpable Ignorance,” Holly Smith says that “[i]gnorance of the nature of one’s act is the pre-eminent example of an excuse that forestalls blame” (H. Smith 543). So, to adapt an example of Smith’s, a doctor who gives a patient the wrong treatment might avoid blame if she thought she was providing her patient with the best care she could. Whether the doctor avoids blame in this way will depend, in part, on whether she was blameworthy for being mistaken about what treatment was best. If the doctor prescribed the wrong treatment because of an earlier “benighting act” that impaired (or failed to improve) her cognitive position, then, *if we take the doctor to be culpable for the benighting act, we may also regard her as blameworthy for her ignorance and for the consequences of her ignorance* (H. Smith 547).

Smith’s focus is on agents whose ignorance is circumstantial rather than moral: the doctor in the above example is unaware that the treatment she prescribes is not best for her patient, but she presumably is aware that she morally ought to give her patient the best treatment.²² More recently, Gideon Rosen has applied an approach like Smith’s to cases of

²¹ I would like to thank the participants at the 2011 New Orleans Workshop on Agency and Responsibility for their questions and comments on this paper, particularly Sarah Buss, T. M. Scanlon, Sarah Stroud, and Gary Watson. I am also very grateful to David Shoemaker and to two anonymous referees for Oxford University Press for their written comments.

²² It is true that the doctor suffers from normative ignorance since she does not know that she has prescribed an inappropriate medication, but this is not what I mean by “moral ignorance.” A doctor who suffers from moral ignorance (as I shall use the phrase) would not know that it is wrong to intentionally prescribe a patient the

both circumstantial and moral ignorance (Rosen 2004).²³ Rosen assumes that for an agent to be blameworthy for actions that issue from moral or circumstantial ignorance, the agent must be culpable for her ignorance. This assumption plays a crucial role for Rosen in a skeptical argument that calls into question many intuitive judgments of moral blameworthiness.

—— Though I reject Rosen’s conclusion, I find his skeptical argument powerful. Indeed, and as I attempt to show, the argument is sufficiently strong that a relatively conservative approach to overturning it does not succeed.²⁴ Instead, if we are to avoid the skeptical conclusion, we must reject the plausible-sounding assumption that unwitting wrongdoers are blameworthy only if they are culpable for their ignorance. To this end, I argue that while ignorance of the circumstances and consequences of one’s actions often undermines blame, moral ignorance typically does not do so. For example, while I might not be blameworthy for injuring you if I was unaware that my action would have that result, I likely would be blameworthy if I were simply unaware that injuring you is impermissible. I will argue, moreover, that a morally ignorant wrongdoer can be blameworthy even if it is not her fault that she is ignorant of the moral status of her behavior, and even if it would be unreasonable to expect her to be aware of its status. In the context of making these points, I also try to shed light on the role that moral disagreement plays in our judgments of blameworthiness.

1. Skepticism about Moral Responsibility

Gideon Rosen has advanced a skeptical perspective on moral responsibility based on the assumption that a wrongdoer is excused if she is non-culpably unaware that she does wrong. For Rosen, moral responsibility (for bad actions) amounts to being liable to the

wrong medication. The doctor in the example suffers from circumstantial ignorance because she is not aware that, given her circumstances, her action will lead to bad consequences for her patient.

²³ Also see Rosen (2003). Michael Zimmerman (1997) offers a view similar to Rosen’s; also see Zimmerman (2008).

²⁴ The conservative approach I have in mind is the one pursued by William FitzPatrick (2008). I discuss FitzPatrick’s view in Section 2.

“sanctions” associated with moral blame; so, for Rosen’s purposes, “we may simply identify moral responsibility with culpability or blameworthiness” (Rosen 2004 296). As Rosen puts it, “[s]kepticism about moral responsibility is thus the thesis that *confident positive judgments of blameworthiness are never justified*” (Rosen 2004 296).

Like many philosophers working on the subject, Rosen takes moral blame to involve certain emotional responses. For example, “you blame X for doing A, when you resent him or feel indignant towards him for having done it” (Rosen 2004 296). Thus, if we judge that X is blameworthy, this means “that X is *liable* [in our judgment] to a negative emotional response of this sort for having done A, or equivalently, that some such response would be *appropriate* or *fitting*” (Rosen 2004 297). Rosen’s skepticism amounts, then, to skepticism about the aptness of negative reactive attitudes like resentment. In what follows, I will understand moral responsibility in just the way Rosen suggests: the primary question will be about whether judgments of blameworthiness, and responses like resentment, are apt.

Rosen’s skeptical argument proceeds as follows. Wrongdoing is either witting or unwitting. While a *knowing* wrongdoer may be directly blameworthy for her behavior, an unwitting wrongdoer will be blameworthy for her wrongdoing only derivatively or indirectly. This means that an ignorant wrongdoer will be morally responsible, in the sense of being open to blame, only if she is culpable for her ignorance.²⁵ However, according to Rosen, “[i]gnorance is culpable only if it derives from culpable recklessness or negligence in the management of one’s opinion” and this prior recklessness will be culpable only if it was knowing or was itself the product of knowing mismanagement of one’s opinions (Rosen 2004 302). So, as Rosen puts it, ignorance is culpable—and unwitting wrongdoing blameworthy—only if it results, at some point, from an akratic act in which the agent knowingly violated an epistemic or moral duty:

²⁵ Following the authors I discuss, I use “culpable” and “blameworthy” interchangeably.

One is responsible for the act done from ignorance only if one is independently responsible for something else. . . . this entails that *the only possible locus of original responsibility is an akratic act*. . . . Our first sin must be a knowing sin—a sin done in full knowledge of every pertinent fact or principle (Rosen 2004 307).²⁶

Rosen applies this perspective to cases of circumstantial ignorance (like that of the doctor in the introduction), but also to cases of moral ignorance. For example, Rosen's view suggests that an "ancient slaveholder who . . . believes that it is morally permissible for him to buy and sell" slaves is blameworthy for his behavior "only if he is culpable for the moral ignorance from which he acts" (Rosen 2004 304).

The skeptical force of this position emerges when we consider the possibility that many unwitting wrongdoers have never committed the kind of akratic act that would make them culpable for their ignorance. Imagine an "ambitious capitalist who is mistaken about where to draw the line between permissibly aggressive business practices and reprehensibly ruthless business practices" (Rosen 2004 305). Rosen supposes (and I agree) that it is not hard to imagine a case in which the capitalist does something wrong without recognizing that his behavior is wrong and that he has been as reflective and careful as it is reasonable to expect him to be. Perhaps the capitalist's moral education was deficient, or perhaps the case he considers is "just a hard case and after thinking about it for a decent interval he has simply arrived at the wrong answer" (Rosen 2004 305). If we agree that "in reaching his [moral] conclusion our capitalist has not been reckless or negligent," Rosen thinks we should also agree "that his moral ignorance is not his fault" and that it would therefore "be a mistake to blame him for the wrong he does" (Rosen 2004 305).

Another example features Bill, who decides to tell a self-serving lie to his wife even though he "knows that it's just plain wrong to lie to your wife" (Rosen 2004 305). Again, it is

²⁶ Zimmerman's view is similar: if "one is culpable for ignorant behavior, then one is culpable for the ignorance to which this behavior may be traced" (Zimmerman 1997 418). However, "one is never in direct control of whether one is ignorant," so culpability for ignorant behavior must be indirect, which "presupposes direct culpability for something else. . . . Hence all culpability can be traced to culpability that involves lack of ignorance" (Zimmerman 1997 418).

possible that Bill had a defective moral education that led him to believe, “through no fault of his own, that while moral considerations have some weight, they are not in general decisive” (Rosen 2004 305).²⁷ Bill may thus be “blamelessly (though mistakenly) convinced that the balance of reasons comes down in favor of lying” (Rosen 2004 306). Rosen argues that in this case it would be unreasonable to blame Bill for telling the lie. Rosen asks: “Does it make sense to subject someone who blamelessly believes that he should do A, and then does it, to moral sanctions—to recrimination, resentment, righteous anger, contempt?” (Rosen 2004 306). Rosen thinks this doesn’t make sense. Instead, Bill’s wife should respond this way:

Poor Bill. Through no fault of his own he found himself believing that all things considered, he should lie. Given that he found himself in that state, I can hardly fault him for lying. Holding the judgment fixed, the lie itself was a perfect manifestation of practical rationality. I can fault him for the lie only if I can fault him for believing that in the circumstances, his selfish interests were more important than my moral interests. Since by hypothesis, it is not his fault that he held this view, I have no option but to conclude that he is not properly culpable for his bad action (Rosen 2004 306).²⁸

Rosen’s official skeptical conclusion is that “*it would be unreasonable to repose much confidence in any particular positive judgment of responsibility*” (Rosen 2004 308). This follows from the claim that an unwitting wrongdoer is blameworthy only if she has an akrasia involving, “*inculcating history*” (Rosen 2004 309) together with the claim that “it is almost always unreasonable to place significant confidence in” (Rosen 2004 308) the judgment that an agent has such a history. In a recent response to Rosen, William FitzPatrick has argued that in fact we often have good grounds for attributing akrasia to ourselves and others (FitzPatrick 593–99). However, as FitzPatrick notes, this leaves untouched Rosen’s conclusion that blameworthy wrongdoing is always either knowing or the result of knowing wrongdoing (FitzPatrick 599). We are left, then, with a striking skeptical challenge, for very many ordinary wrongdoers may not have a relevant instance of akrasia in their past and so are

²⁷ Unlike the ambitious capitalist, Bill is mistaken about the force of moral considerations rather than about a moral principle.

²⁸ For discussion of a related example, see Rosen (2008 605–609).

not morally responsible for their wrongdoing.²⁹ Below, I consider Fitzpatrick's attempt to meet this skeptical challenge.

2. FitzPatrick's Reply to Rosen

FitzPatrick accepts the "intuition at the core of [Rosen's] argument, that it is unfair to blame someone for an action done out of ignorance that he cannot fairly be blamed for having" (FitzPatrick 601). However, FitzPatrick rejects Rosen's claim that unwitting wrongdoers are culpable for their ignorance only if it resulted from knowing wrongdoing. According to FitzPatrick, an unwitting wrongdoer will also be culpable for her ignorance if she "could reasonably have been expected to take measures that would have corrected or avoided it" (FitzPatrick 609).

To make his case, FitzPatrick expands on Rosen's "ambitious capitalist" example and considers Mr. Potter, the ruthless businessman in Frank Capra's 1964 film, *It's a Wonderful Life*. Potter is callous, vindictive, greedy, and dishonest, but let us suppose that he wrongly believes that his behavior is permissible. FitzPatrick argues that even if Potter did not akratically acquire his false moral beliefs, there are three central factors "that make most of us confident that Potter's moral ignorance is culpable" (FitzPatrick 605). First of all, Potter never engaged in the kind of moral reflection that might have helped him correct his moral ignorance, yet "[t]here were no relevant limitations in his social context or in his capabilities" that would have made such reflection unreasonably difficult (FitzPatrick 605). This suggests that "[t]he failure of adequate reflection" on Potter's part "was instead the result of voluntary exercises of vices such as overconfidence, arrogance, dismissiveness, laziness, dogmatism, incuriosity, self-indulgence, contempt, and so on" (FitzPatrick 605). According to FitzPatrick, Potter "could thus reasonably have been expected to take steps that would have eliminated

²⁹ This is close to the skeptical conclusion advanced by Zimmerman (1997:425).

that [moral] ignorance, by refraining from exercising those vices and instead taking advantage of" available opportunities for moral and epistemic improvement (FitzPatrick 605).

So on FitzPatrick's view, given Potter's general capacities, and the fact that "the opportunity for improved normative understanding was clearly present in his social context," it is reasonable to hold Potter to the expectation that he correct his moral ignorance (FitzPatrick 603-4). Thus, Potter is culpable for his ignorance and blameworthy for behavior that flows from it.

I agree with FitzPatrick that Potter is blameworthy for his bad behavior, but I am not convinced that it is reasonable to expect Potter to correct his moral ignorance. As FitzPatrick sees it, explaining Potter's moral ignorance in terms of his vices helps us see that this moral expectation is reasonable: Potter's failure to engage in reflection wasn't forced on him by circumstances or inability, it resulted from vicious choices that he was free to omit. I content, however, that this emphasis on Potter's vices is unhelpful for the point FitzPatrick wants to make.

FitzPatrick characterizes Potter's failure to correct his moral ignorance as "the result of voluntary exercises of vices" (FitzPatrick 605). But what does Potter do *voluntarily*? He does not voluntarily behave in ways that he regards as impermissibly vicious—FitzPatrick's point hangs on Potter not being a *knowing* wrongdoer. Rather, Potter voluntarily exercises his vices in the sense that he acts voluntarily and his vices shape his practical judgments in characteristic ways. Now if Potter's vicious actions are voluntary in this sense, then he might have omitted them if he judged himself to have reason to do so, but one symptom of Potter having his vices is that he sees little in favor of such an omission. If Potter is afflicted with all the vices FitzPatrick mentions, he is not likely to see much in favor of exploring the opportunities for moral improvement available to him, so perhaps it is unreasonable to expect

him to do so.

Neil Levy argues similarly against FitzPatrick that it is not reasonable to expect Potter to correct his vices because it is likely not subjectively rational for Potter to do so. When we think about what can reasonably be expected of a person, Levy says we should consider what that person can do by way of a rational reasoning procedure, and what an agent can do in this way is a function of her internal reasons, her “actual representations and proattitudes” (Levy 2009 736). As Levy notes, even if Potter’s failure to subject his values to scrutiny is a manifestation of epistemic and moral vices,

by his lights, Potter governs his normative views adequately. He gives competing views the attention he takes them to deserve. . . . But if Potter does not see that he is managing his moral views badly, he has no (internal) reason to manage them any differently. Potter exhibits epistemic vices aplenty, but because he does not conceive of them as vices, he has no internal reason to refrain from so doing (Levy 2009 737).

Levy concludes that since Potter “could not rationally have taken advantage of the opportunities for moral improvement” with which he was presented, “we cannot reasonably expect him to do so” (Levy 2009 735).³⁰

There is also the question of how Potter acquired his vices. As FitzPatrick notes, it may seem “problematic that the vices Potter exhibits in his epistemically debilitating choices may trace back to his childhood and may be largely a result of moral (bad) luck” (FitzPatrick 607). FitzPatrick deflects this worry by noting that for most people “character traits are not

³⁰ This discussion is taken up again in (Levy 2011 124–128). A referee for Oxford University Press points out that we use the word “expect” in normative and descriptive senses (to use the referee’s terminology). The descriptive sense presumably has to do with what we anticipate from an agent in view of his capacities and the context in which he acts, whereas the normative sense has to do with standards against which we measure agents. When I say, “I expect it to rain tomorrow,” I use “expect” in the descriptive sense. I anticipate rain; it seems like a safe bet. Neither Levy nor FitzPatrick expect moral reform from Potter in this sense; neither regards it as a safe bet. (Though FitzPatrick is keen to draw attention to Potter’s abilities and his social context and the way that these make reform at least possible; he regards such reform as a live possibility even if not as a likely outcome.) By contrast, both Levy and FitzPatrick agree that Potter falls short of our expectations in at least one normative sense: they both regard Potter’s behavior as morally subpar. The question is whether this subpar behavior opens Potter up to moral blame. Here we might identify a slightly different sense in which “expect” can be normative, the sense in which we talk about *holding* someone to an expectation. Fitzpatrick thinks it is reasonable to hold Potter to our moral expectations because it is possible for him to live up to these expectations given his abilities and the context in which he acts. Levy thinks it is unfair to hold Potter to our moral expectations because he can fulfill these only by behaving irrationally.

merely given but are formed, reformed and continuously shaped by our choices from the point of moral maturity onward” (FitzPatrick 608). But this is not a helpful response to the problem of constitutive moral luck since it simply pushes the problem back to earlier stages of Potter’s development. Apparently, Potter made poor choices as he shaped his character. But why did he make such poor choices? By hypothesis, he did not *knowingly* make poor character forming choices, so perhaps Potter’s tendency to make “epistemically debilitating” choices is explained by a tendency to see poor self-forming choices as choice-worthy. But in this case, Potter’s self-forming choices would seem to be shaped by incipient versions of the vices that his self-formation is invoked to explain. And given the presence of these incipient vices, why should we expect Potter to make the right choice when it comes to choosing whether to act in a way that will strengthen his vices?

Finally, it is worth noting that FitzPatrick says that “cultural and historical contexts” may make it unreasonable to expect a wrongdoer to know better because “the relevant [moral] knowledge isn’t reasonably available” (FitzPatrick 612). Aristotle, for example, may not be blameworthy for thinking slavery permissible because slavery would have presented “a genuinely hard case for someone in Aristotle’s circumstances” (FitzPatrick 600 note 24). Since social and cultural factors can turn a question that is easy *for us* like “Is slavery wrong?” into a difficult question for someone in ancient Greece, this undermines the culpability of the morally ignorant Greek. But Potter’s vices seem to turn apparently easy moral questions into difficult ones, so perhaps these internal obstacles to moral knowledge should (at least on FitzPatrick’s account) have the same excusing force as cultural impediments to moral knowledge.

3. Rejecting the Skeptical Argument

I agree with Levy that it is unreasonable to expect Potter to recognize and correct his

moral ignorance. If this is right, and if it is also true that Potter never committed a relevant act of knowing wrongdoing, then he would not be culpable for his moral ignorance on either FitzPatrick's or Rosen's account of culpable ignorance. What goes for Potter presumably goes for many other unwitting wrongdoers, so if we accept the assumption—endorsed by Rosen, FitzPatrick, and Levy—that unwitting wrongdoers are blameworthy only if they are culpable for their ignorance, then we should conclude that many (perhaps very many) ordinary wrongdoers are not blameworthy for their bad behavior. Fortunately, we need not accept this conclusion because there is good reason to reject the assumption that unwitting wrongdoers are blameworthy only if they are culpable for their ignorance.

The central instance of wrongdoing in *It's a Wonderful Life* occurs when Mr. Potter keeps \$8000 that George Bailey's uncle Billy misplaced. Potter keeps the money, believing (and hoping) that this will cause the foreclosure of Bailey Building and Loan, as well as the prosecution of George Bailey for bank fraud, and that this will leave the town of Bedford Falls ripe for economic exploitation. Recall that we are concerned here with whether someone like Potter is morally responsible for his behavior in the sense of being an appropriate target for blaming attitudes like resentment. Plausibly, if George Bailey were to resent Potter, this resentment would be provoked by the fact that Potter willingly acted so as to cause a bad outcome for George, and that he did so because of a desire to injure George and to extract an economic benefit from George's misfortune. These aspects of Potter's behavior make George's resentment natural and appropriate. If Potter's actions had lacked these features—if he had been coerced or had thought he was acting in George's best interests—then it would be inappropriate for George to resent Potter. But if Potter deliberately injured George, and did so for self-serving reasons, then George can quite reasonably point to these facts to explain and justify his resentment even if Potter happens to

regard his behavior as permissible.³¹

The features of Potter's behavior just mentioned make George's blaming responses appropriate because of the way these features are tied up with Potter's expression of contemptuous judgments and attitudes towards George.³² For example, if Potter deliberately injured George for self-serving reasons, then this behavior expresses the implicit judgment that George's welfare is unimportant in comparison with whether Potter achieves his aims. (In fact, it's not just that George's welfare is unimportant for Potter, he regards the possibility of injuring George as a reason for acting.) Given the contemptuous judgments that inform Potter's behavior, George can reasonably regard Potter's behavior as unjustifiable and morally offensive—rather than as merely harmful or unwelcome—and thus as proper grounds for resentment.

Similar points apply to Rosen's example of Bill. Recall that, through no fault of his own, Bill believes that his selfish reasons for lying to his wife trump the moral reasons against doing so. Rosen says that

[a]nyone who bears our principles [about culpable ignorance] in mind and nonetheless judges that Bill is responsible for lying to his wife, is thereby committed to the view that somewhere in the story of that lie there exists a full-blown episode of altogether knowledgeable wrongdoing (Rosen 2004 307-8).

"Responsibility" is an elastic term, so we can interpret the claim, "Bill is responsible for lying to his wife," in different ways. By hypothesis, Bill is not at fault for thinking that he has decisive reason to lie, so Bill is not responsible for lying to his wife in the sense of having played a particular sort of causal role in the process that led him to think that lying is the thing to do. But whether Bill is responsible for lying in this sense is not what is at issue. Again, the issue is whether Bill is morally responsible in the sense that attitudes like

³¹ In Section 5, I address the concern that Potter's non-culpable moral ignorance makes it unfair to blame him.

³² For other applications of this kind of approach to blameworthiness, see T. M. Scanlon (1998) and (2008), Angela Smith (2005) and (2008), and my own (2008) and (2012a).

resentment would be a fitting response to him. The central question about Bill is whether it makes “sense to subject someone [like Bill] who blamelessly believes that he should do A, and then does it, to moral sanctions—to recrimination, resentment, righteous anger, contempt?” (Rosen 2004 306).

I take it that Rosen believes that Bill is responsible for lying, in the sense of being open to attitudes like resentment, only if he is responsible for lying in the sense of having played the right sort of role in bringing about his own tendency to favor lying. But Bill’s case is a good example of why moral responsibility, in the sense of blameworthiness, does not require that agents have this sort “inculcating history.” It is reasonable for Bill’s wife to blame him because of the way his lying expresses Bill’s morally faulty judgments and attitudes. Bill has these faults, and they contribute to his behavior, regardless of whether he is *at fault* for having them, and regardless of whether Bill genuinely believes that lying to his wife is the thing to do.

One of Bill’s faults has to do with how his wife’s interests rate when he is trying to figure out what to do: Bill is willing to overlook his wife’s interests when they conflict with Bill avoiding trouble. It is reasonable, then, to attribute to Bill the judgment that his wife’s interest in not being lied to can be overlooked, if that is how Bill can get what he wants. If Bill’s wife were to find out how her interests rate with her husband, that he lied to her and the basis on which he did so, then she would have good grounds for blame. That is, it would be appropriate for her to be offended and hurt by what Bill’s action expresses, for her to protest that her interests ought to rate more highly with Bill, to resent him for his callousness, to insist that he change his ways, and so on.

The general perspective developed above is as follows. Even if a wrongdoer is ignorant of the fact that her behavior is wrong, and even if this ignorance is not her fault, her actions may still express the contemptuous judgment that certain others do not merit

consideration, that their interests do not matter, and that their objections can be overlooked. If one is injured by a wrongdoer who is moved by such judgments, then the attitudes and responses involved in moral blame are reasonable regardless of what the wrongdoer thinks about the moral status of her behavior. I will develop this perspective below, but there is enough here to see one way of rejecting the skeptical perspective on moral responsibility with which this paper began. Rosen's skepticism depends on assuming that unwitting wrongdoers are open to blame only if they are culpable for their ignorance. However, as I have argued, certain features of an unwitting wrongdoer's behavior can qualify her for blame regardless of whether she is culpable for her ignorance.

4. Moral Ignorance and Moral Disagreement

———Angela Smith has applied a view like the one I just outlined to show that agents are often morally responsible for things that are not under their direct control: their desires and emotions, their advertences and inadvertences, and so on. We are responsible for these things, on Smith's view, because of the evaluative judgments they express and the importance of these judgments for our interpersonal relations.

———Smith gives special attention to the fact that "we often take what a person notices and neglects to have an enormous amount of expressive significance" (A. Smith 2005 242). What a person notices attracts our attention because we assume a connection between what one notices and what one values. According to Smith, "if one judges some thing or person to be important or significant," this should "have an influence on one's tendency to notice factors which pertain to the existence, welfare, or flourishing of that thing or person" (A. Smith 2005 244). And if one fails to notice such factors, this "is at least some indication that she does not accept this evaluative judgment [about the thing's importance]" (A. Smith 2005 244). As Smith says, I may fail to "notice when my music is too loud," or that "my advice is

unwelcome,” or that “my assistance might be helpful to others,” and *even if these failures are involuntary*, they may still indicate “that I do not judge your needs and interests to be important, or at least that I do not take them very seriously” (A. Smith 2005 244).

—— Though she does not describe them this way, the examples Smith cites are instances of circumstantial ignorance. On Smith’s view, then, judgments about a circumstantially ignorant wrongdoer’s moral responsibility should track the plausibility of associating her behavior with interpersonally significant evaluative judgments — particularly judgments about the normative status of the needs and interests of those affected by the wrongdoer’s actions and omissions.

As should be clear from the previous section, I am largely in agreement with Smith, but it is worth emphasizing that we cannot always infer that an agent does not care about something from the fact that she fails to notice how her actions (or omissions) will affect it. Smith is aware of this; she notes that in some cases of inadvertence, “the person in question may be extremely tired or under a lot of stress” and this may “block the normal inference from what a person notices to what she cares about” (A. Smith 2005 244 note 14). Indeed, we sometimes hesitate to make the inference from what a person notices to what she cares about even when we cannot point to stressors that intuitively explain an agent’s inadvertence. Sometimes, and for no obvious reason, we just forget things, or fail to notice them, yet we may have as much concern for these things as we ought to have. This can be true even in cases in which an inadvertence has horrible consequences, such as when a parent mistakenly leaves a child in a hot car. In some of these cases, it is no doubt correct to infer that the parent has a condemnable lack of concern for the child’s welfare. But in other cases, it is difficult to read the testimony of the parents involved and come away with the thought that their forgetting is best explained by a morally deficient degree of parental concern. Many of these parents seem to have been as concerned with their child’s welfare as morality requires; yet,

they left them behind all the same.³³

We may often be unsure how to assess the sorts of cases just described, but my general point is uncontroversial: we should be cautious before we conclude that an unwitting wrongdoer's actions or omissions express evaluative judgments that might ground blame. More controversially, I would argue that such caution is particularly appropriate in cases in which the unwitting wrongdoer is ignorant of features of the context in which she acts, or of the likely consequences of her behavior. There is correspondingly less reason to be cautious about attributing blame-grounding judgments in cases of moral ignorance in which an agent is aware of the consequences of his behavior, but is unaware that it is wrong to bring about those consequences.

One consideration in favor of this last claim is obvious: if an agent is aware that act *A* will have consequence *C*, then, when she *A*'s, it is usually reasonable to attribute to her at least an implicit judgment about how the prospect of *C* bears on the question of whether to *A*. Of course, the fact that an agent knows that her action will cause *C* does not entail that she formed an *objectionable* judgment about the significance of *C*. The reason we should expect the actions of morally ignorant wrongdoers like Mr. Potter to express objectionable judgments is that their moral ignorance is—unlike a lot of circumstantial ignorance—often a manifestation of a normative disagreement the agent has with those who object to his behavior. More specifically, the moral ignorance of such an agent is often tied up with a perspective that regards as unobjectionable the very thing that his victims take to make his behavior objectionable.

Mr. Potter's moral ignorance, for example, is partly constituted by the fact that he thinks he assigns George's interests their proper weight in his practical deliberations. Of course, we disagree with him about the normative significance of George's interests, and

³³ Cf. Levy (2011:182). Gene Weingarten's (2008) Pulitzer Prize winning article, "Fatal Distraction," offers a detailed and affecting account of some of these cases.

since we take our position to be the right one, we regard Potter as lacking moral knowledge. In such a case—where a wrongdoer’s moral ignorance is part and parcel of a profound normative disagreement between us and him—it is no surprise that his behavior expresses judgments and attitudes that are, by our lights, objectionable.

Of course, our normative judgments may conflict more or less profoundly with the judgments we attribute to morally ignorant wrongdoers, and as the severity of this disagreement decreases, so too may the intensity of our blame. Take the case of Robert E. Lee. Those interested in burnishing Lee’s reputation often note that he joined the secessionist cause in the U.S. Civil War out of loyalty to the state of Virginia. Lee did wrong, I assume, in leading Confederate troops against the Union, but he thought he was doing what duty and loyalty required. Suppose, however, that Lee was motivated to support the Confederacy solely by racial hatred and a desire to see slavery preserved. In this case, Lee would still be a morally ignorant wrongdoer, but his defenders would face a much more difficult task in convincing us to excuse him. This is because Lee’s actions would have been associated with judgments and attitudes that we find deeply objectionable. An excuse like, “Lee thought he was doing the right thing,” would, I submit, have little influence on us if we found the judgments that informed his choices thoroughly repugnant. And if we do have some tendency to accept this excuse, I suspect it is because the judgments about the value and requirements of loyalty that purportedly guided Lee are not utterly foreign or repellant to us.

5. Internal Reasons and the Fairness of Blame

In this section, I respond to the claim that it is unfair to blame an unwitting wrongdoer who can’t reasonably be expected to omit her bad behavior. Along the way, I develop the suggestion I made at the end of the last section that moral blame often rests on the recognition of a moral disagreement between ourselves and the one we blame. I will argue

that what matters most for judgments of blameworthiness are the considerations that count as reasons for us (as issuers of blame), and not whether these considerations could have counted as reasons for those we blame.

Let us return to Neil Levy's discussion of Mr. Potter's blameworthiness. According to Levy,

[i]t is not reasonable to blame agents for actions they cannot (intentionally) omit by way of some reasoning procedure; we cannot hold them responsible for failing to do things they could do only by chance or through a glitch in their agency (Levy 2009 739).

For Levy, part of the problem with blaming Potter is that his actual proattitudes do not rationalize a decision to reassess his values and epistemic practices, and this means that he lacks a fair opportunity to avoid the actions for which we would blame him. As Levy sees it, "agents have a fair opportunity to avoid performing actions . . . only if they could have rationally chosen to omit the action, and what agents can do rationally is a function of their internalist reasons alone" (Levy 2009 739).

I believe that the sense in which Potter has trouble avoiding wrong actions does not make it unfair to blame him. Let us agree that Potter has no internal reason to avoid a morally bad action, and that if he had avoided the action, this would have been because of a "glitch" in his agency, as Levy puts it. Importantly, this does not mean that Potter's *actual* bad behavior is the result of a glitch, mistake, compulsion, or anything similar. If someone is subject to a compulsion or to "glitchy" agency, then some of her actions may be unavoidable and she will have a claim to being excused for this behavior. But the basis of excuse here—the reason the compulsive agent is not appropriately targeted with resentment—is that her behavior is not under her control in such a way that it can express the objectionable judgments that would make blame appropriate. Usually, an agent's inability to avoid an action goes together with that action not being under the agent's control in this way, but cases of moral ignorance like Potter's are an exception. Even if Potter does not have rational access

to doing the right thing, his bad behavior may be a manifestation of perfect reflective self-control and subjective practical rationality: he may be acting just as he likes and for reasons that really do speak in favor of so acting, given his proattitudes. But if Potter's bad actions are guided in this way by his judgment about reasons, then they can express the kinds of attitudes and evaluative judgments that I have argued make blaming responses appropriate.³⁴

In addition, Potter presumably has the capacity to avoid wrongdoing in the sense that, for any wrong action, he would have refrained from performing that action if he had taken himself to have a decisive reason to do so. Of course, if Potter's actual constitution entails that he will see no such reason, then he will not rationally avoid his wrongdoing, and it is this lack of rational access to avoiding wrongdoing that Levy thinks makes blame unfair. But if Potter's bad actions are guided by his judgments about how to behave, and if he would have acted differently if he had recognized a reason to do so, then his wrongdoing is unavoidable mainly in the sense that an action that is wrong (by our lights) is bound to seem choice-worthy to Potter. Since this sort of unavoidability does nothing to make Potter's behavior less knowing, deliberate, and dismissive of the interests of those his actions affect, I do not see why it should make blame unfair.

So, while I agree with Levy that it is not reasonable to demand that Potter behave contrary to his internal reasons, what I think this tells us is that having subjective rational access to avoiding an action is not a requirement on being properly blamed for that action. In other words, an agent may be blameworthy for performing an action that she had no internal reason to avoid. In my view, approaches like Levy's focus too much on the perspective of the blamed agent, on what can count as a reason for him, and what can be expected of him. In fact, I think that our judgments about blameworthiness are often formed—and rightly so—on

³⁴ There is an important relation here with the theme of Harry Frankfurt (1969). I develop this point in (2012a).

the basis of the normative considerations that we recognize, and not on whether those we blame could have assigned the same normative weight to these considerations that we do.

Suppose we believe that Potter unjustifiably injured George by a certain action, and that while Potter willingly acted with the intent of injuring George, he could not have been expected to omit this action because, through no fault of his own, he had no internal reason to do so. If we regard Potter's treatment of George as unjustified, we at least think that Potter does not agree with us about the status of things that are *for us* important normative considerations. George, in particular, may think that his welfare is valuable, and that a person of good will who is appropriately sensitive to value will see a reason to avoid actions that are contrary to his welfare. From George's perspective, then, since Potter has failed to see his welfare as reason giving, this suggests that he is not disposed toward George as a person of good will would be.

Because of George's judgment about the importance of his own welfare, Potter's action appears unjustifiable and offensive to George. Potter, of course, will see things differently: he thinks his treatment of George is entirely appropriate and that he has no reason to refrain from it. This may mean that Potter has no internal reason to omit his action, but regardless of whether this is the case, it is still true that Potter does not view the prospect of George's injury as a reason to refrain from his action. Thus, Potter's action expresses the offensive judgment that George's welfare is not particularly valuable.³⁵ And even if George agrees that Potter had no (internal) reason to refrain from his action, it is inappropriate to demand that George regard Potter's action as unobjectionable because this asks George to concede that his welfare is not normatively significant. Even if George agrees that, in the

³⁵ What if a wild animal injured George? Would we say that the animal's behavior expresses a blame-grounding rejection of the significance of George's welfare? I think not. The behavior of animals is not morally significant in this way because a judgment like, "George's injuries don't matter," is not meaningfully attributed to them. I don't mean that nonhuman animals can never be described as being sensitive to reasons but rather that their behavior does not have the same significance for us as that of beings whose behavior is more richly and generally informed by evaluative judgments.

internalist sense, Potter has no reason to care how he fares, it is still appropriate for George to insist that his welfare is valuable and to see Potter's rejection of this claim as a manifestation of ill will.

If we agree with George that his welfare is valuable, and that a person of good will would see his welfare as a source of reasons, we should conclude that Potter's judgment about the significance of George's welfare reasonably elicits blaming responses on George's part. By contrast, if we think that George's welfare has little normative significance, we are likely to find George's blame inappropriate. However, this conclusion would stem not from the thought that Potter can't reasonably be expected to recognize the significance of George's welfare, but rather from our disagreement with George about this significance.

It may be thought that Potter can reject the normative status of George's welfare in a morally relevant way only if he had rational access to an accurate judgment about this status.³⁶ I don't see why this should be so. What reason is there to think that the expressive significance, for George and for us, of Potter's behavior should hang on whether Potter might rationally have made different judgments about reasons? After all (and as I pointed out above), Potter's actual behavior, and his actual failure to agree with George about the significance of his welfare, need not have been caused by a glitch, but may be a thoroughly deliberate and controlled exercise of his agency. And suppose that Potter *did* have some internal reason to take George's welfare as a constraint on his behavior, but that he still unjustifiably and deliberately injured him. If we did not already think that Potter's action was offensive in a blame-grounding way, I do not see how adding this element to the story would make blame appropriate. What matters is that George believes (and we believe) that he has standing that makes Potter's treatment of him illegitimate. Regardless of whether Potter could

³⁶ This would be similar to Gary Watson's claim that a wrongdoer flouts a moral demand in a way that justifies resentment only if he is capable of recognizing the validity of the demand (Watson 2004:234).

have been rationally moved to accept our view about the treatment to which George is entitled, his knowing and willing behavior demonstrates that he rejects this view.

In one of his discussions of internal reasons, Bernard Williams characterizes blame as functioning like advice given after the fact—it tells wrongdoers what they ought to have done. As Williams says, “if ‘ought to have’ is appropriate afterwards in the modality of blame, then (roughly) ‘ought to’ was appropriate at the time in the modality of advice” (Williams 40). However,

‘ought to’ in the modality of advice implies ‘can,’ because advice aims to offer something as a candidate for a deliberative conclusion. If ϕ -ing is not available to the agent, ‘You ought to ϕ ’ cannot function as a piece of advice about what he should now do; when it is a matter of what I am to do, manifestly ‘I cannot’ acts as a stopper (Williams 40).

Similarly, we might worry that if a wrongdoer has no internal reason to refrain from an action, this is a “stopper” on blame because there is no point to the advice that is supposedly implicit in blame.

I agree that when we blame a person, we are typically committed to the claim that she ought not to have done what she did. But the “ought” of blame is not always, or at least not solely, in the mode of advice. It can also be an “ought” that points to an ideal or to a moral fact: the fact, for example, that George deserves better treatment from Potter, and that a person of good will would not have disregarded George’s interests and welfare. This sort of “ought” does not imply “can.” Of course, as a form of advice, it may be futile for George to insist to Potter that his welfare matters. But as a form of *protest* this insistence is a natural way of expressing the moral offense and resentment involved in blame.³⁷ The reasons that matter most for blame are *our* reasons—the considerations recognized by the victim and by

³⁷ I argue that moral blame is sometimes best construed as a form of moral protest in (2012a).

those who sympathize with her. Whether these considerations can also be reasons for the blamed party is, I think, of secondary importance.³⁸

6. Circumstantial Knowledge And Blame

On the account I have presented, when it comes to thinking about how knowledge relates to blameworthiness, we should consider what a wrongdoer needs to know in order for her actions to express the attitudes and judgments that make blame appropriate. What does an agent need to know before we attribute to her a judgment like, “your objections and interests can be overlooked when I am deciding how to act”? As I have argued, awareness that one’s actions are wrong is not necessary for the presence or expression of such judgments. Much more relevant in this context is knowledge of the effects that one’s actions will have on others. If a person knows that her action will injure someone who objects to this result, then it is reasonable to attribute to her the judgment that the other’s injuries and objections are not a decisive reason to refrain from the action. Judgments like this help to ground blaming responses because of the way they call into question the standing of the other to raise objections to certain forms of treatment and to cite her interests as normative considerations.

Of course, we will not always think that an agent is open to blame when her actions express the judgment that another’s interests and objections may be overlooked. As I suggested with my example of Robert E. Lee in Section 4, our views about an agent’s

³⁸ A referee for Oxford University Press suggests that I might note the affinity between what I say in this section and, e.g., the sort of view once defended by Philippa Foot (1972). There certainly seem to me to be affinities here but I am not sure how to characterize them; I will simply note that I am very attracted to the sort of view Foot outlines. Another referee suggests that I can in fact say that it is reasonable to expect wrongdoers like Mr. Potter to correct their moral ignorance. This suggestion relies on my characterization of these wrongdoers as expressing ill will, the fact that expressions of ill will (arguably) flout the demand to treat others with reasonable regard, and the fact that this demand is connected to our normative expectations of other agents. I don’t doubt that this proposal is workable but (in this and previous work) I prefer to grant to opponents that certain moral demands and expectations are off the table in Potter’s case (and other related cases). I think this helps to make the debate more clear than it would be otherwise. However, the referee’s comment prompts me to note that my disagreement with FitzPatrick is in some ways less stark than I presented it in Section 2. FitzPatrick and I agree that Potter can reasonably be held to our moral standards in the sense that we regard him as a proper target of moral blame. (I suspect this is the sense in which the referee believes I can say that we properly expect better things of Potter.) However, for FitzPatrick, the legitimacy of blaming Potter depends on his having been able to avoid his moral ignorance. On my view, Potter’s blameworthiness does not depend on this but only on the actual judgments that inform his behavior.

blameworthiness vary with the degree to which we accept the judgments that move her. Most people believe that it is permissible to use violence in self-defense against an aggressor. If we take an instance of self-defense to be justified, then we likely think that whatever objections the aggressor might raise to the force used against him are rightly overlooked. Thus, we would be unlikely to blame the person who defended herself even if she acted on the judgment that, in the relevant instance, the aggressor's welfare can be overlooked. The injured aggressor may resent the one who injured him in self-defense, but by our lights, and by those of the one who acted in self-defense, this blame will appear inapt and unreasonable.

Similarly, if I uproot a plant, my action may express an implicit judgment that plants do not have standing to raise objections to the way I treat them. But I am not blameworthy here because this judgment is accurate; treating plants this way *is* unobjectionable. Whatever objections there may be to uprooting a plant are not grounded in the fact that plants are, in themselves, the sort of things that can be treated objectionably.

Suppose, however, that I am wrong about this, and that plants can suffer, and that they have a perspective from which to raise objections to my treatment of them. In the context of criticizing views like the one defended in this paper, Neil Levy proposes just this case:

Suppose that there is a kind of harm that is objectively morally relevant, but of which we are ignorant. Suppose, for instance, that plants can be harmed, and that this harm is a moral reason against killing or treading on them. In that case, many of us are causally responsible for a great many moral harms. Are we morally responsible for them? Do we flout a moral requirement, and challenge plants' standing as objects to which some moral consideration is owed? No to all these questions: If we do not grasp the moral requirement, and this ignorance is not culpable, we do nothing blameworthy (Levy 2005 9).³⁹

Now I agree that we are not blameworthy for stepping on plants in Levy's example, but the example is offered as an instance of exculpation by way of nonculpable *moral* ignorance and this is not what it shows. Levy's example fails to illustrate the exculpatory

³⁹ I should note that Levy is considering psychopaths (rather than relatively normal wrongdoers like Mr. Potter) when he offers this example, but I don't think this affects its usefulness here. David Shoemaker (2011) treats a similar example; I reply to Shoemaker in (2012b).

power of moral ignorance because what explains why we are not blameworthy in the example is that we lack crucial information about how walking on plants affects them. Since I do not know that plants can be harmed, my stepping on one does not express a denial of the significance of its being harmed. So on the view I advocate, stepping on a plant does not express a judgment that could properly ground blame.

The problem is that Levy's example does not involve the relevant sort of moral ignorance. There is, of course, a kind of moral ignorance in the example: we lack knowledge of the moral status of stepping on plants (because we are ignorant of their capacity for suffering). But this moral ignorance derives from circumstantial ignorance and not from ignorance of a moral principle. In the example, I presumably know that I generally have moral reasons to not cause pain; I just don't know that stepping on plants causes them pain. However, the moral ignorance of someone like Mr. Potter is just the reverse: he knows that his actions will cause George Bailey and others pain, but he does not know (because he does not believe) that this counts decisively against performing these actions.

For Levy's example to help us see that Potter's sort of moral ignorance counts as an excuse, the example would have to feature Potter's sort of ignorance. The example would need to be one in which I know, say, that stepping on a plant will cause it pain and I (noneulpably, but wrongly) believe that this pain does not matter. Now if we think that I am blameless in this revised version of Levy's example, we might draw a conclusion about the exculpatory significance of noneulpable ignorance of moral principles. Of course, I would not agree that I am blameless in this revised case. If I knowingly (and unjustifiably) cause a plant severe pain, then I am open to resentment and indignation because my action dismisses the normative significance of the plant's pain, and this is something to which the plant (or at least one who is concerned for its welfare) could reasonably object.

Conclusion

I have argued against the assumption that morally ignorant wrongdoers are open to moral blame only if they are culpable for their ignorance. Thus, I reject skepticism about moral responsibility that depends on this assumption. On the view I have defended, the attitudes involved in moral blame are responses to the features of an action that make it objectionable from the perspective of the one who issues the blame. One important way that an action can appear objectionable to us is that it expresses a judgment with which we disagree about the significance of the needs and interests of those affected by the action. Whether a wrongdoer's action has this feature depends more on whether she is aware of the consequences of her behavior than on whether she regards her behavior as wrong.

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